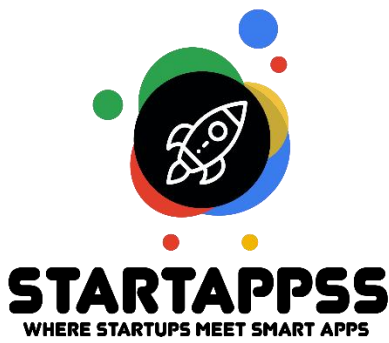




## Appointment Letter

Ishan Srivastava

Indore , MP

We are pleased to promote you as a position of **MERN-Stack Developer** on **14/04/2025** at Startappss Systems Private Limited.

Your place of work will normally be from **Office** but if the exigencies in company's work so require, you may be posted in any part of the world where there are company's operations.

Enclosed are your terms and conditions of services and we shall be grateful if you will confirm that these are acceptable to you by signing and returning the original documents. Your compensation, other benefits and general terms and conditions are mentioned in enclosed documents 1 & 2, which are enclosed with this letter.

Please also let us have the attached Employee Agreement, Non-Compete Agreement, Non-Disclosure Agreement, and the application for employment form duly completed lagoon with 2 passport size photographs .

This offer is subject to your medical fitness, verification of your educational certificates, credit check and satisfactory references.

We look forward to your joining the company, and are sure that you will find this to be a significant career move.

Your Sincerely,

For **Startappss Systems Private Limited(Authorized- HR-Department)**

 +91 923-892-0590

 [www.startappss.com](http://www.startappss.com)

**Enclosure: 1**

**ANNEXURE 'A': COMPENSATION DETAILS** (Salary, applicable benefits and General Terms and Conditions)

**Name:**

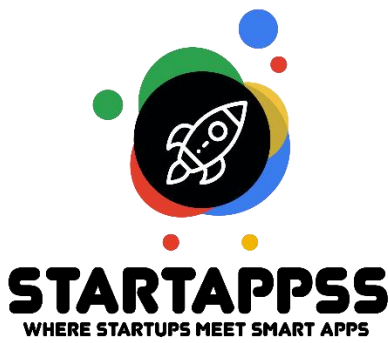
**Designation:**

**Date Of Joining:**

|              | Component | Amount                           |
|--------------|-----------|----------------------------------|
| Total Salary |           |                                  |
| Basic Salary |           | <input type="text" value="ctc"/> |

**Terms & Conditions-**

1. Two months' notice should be given by employee before leaving company along with resignation.
2. All salary dues shall be settled at the time of successful completion of notice period by attending office and complete pending tasks with proper handover of data / projects to immediate senior / tech lead during notice period.
3. For any issue you should inform to management of the organization in writing form no verbal communication shall be entertained.
4. Leave shall be accepted only by the permission of team leader and it will be sole discretion of team leader / HR Manager / Management to approve / Reject leave. No leave shall be claimed as right.
5. You should inform to your team leader before taking leave. In month one calendar month CL (You will be eligible for 1.5 Casual Leave) only after successful completion of probation period.
6. Business tours or any office related work should be your first priority while applying for leave. Leaves will be granted taken your work priorities into consideration.



Dear Ishan Srivastava

Welcome to the Dynamic growing and ethical team. Following are list of instruction which has to be followed by all of us during our working. Please read it carefully and follow it.

1. Undertake short-term or long-term projects to address a variety of issues and needs
2. Meet with management or appropriate staff to understand their requirements
3. Conduct situational and data analysis to identify and understand a problem or issue,
4. Present and explain findings to appropriate executives
5. Provide advice or suggestions for improvement according to objectives
6. Formulate plans to implement recommendations and overcome objections
7. Arrange for or provide training to people affected by change
8. Evaluate the situation periodically and make adjustments when needed
9. Replenish knowledge of industry, products and field

Best of Luck

**For Startappss Systems Private Limited**



**Authorized Signature**

 +91 923-892-0590

 [www.startappss.com](http://www.startappss.com)

### Confidential Information

Due to your access to confidential information, all employees of the Startappss Systems Private Limited must sign this agreement. "Confidential information" means any information of a secret or confidential nature relating to the workplace. Confidential information may include, but is not limited to, the following: trade secrets, proprietary information, customer information, customer lists, methods, plans, documents, data, drawings, manuals, notebooks, reports, models, inventions, formulas, processes, software, information systems, contracts, negotiations, strategic planning, proposals, business alliances, and training materials. In connection with being enrolled in a Startappss Systems Pvt Ltd, I agree to the following:

**I have read and understand the above definition of "confidential information." I agree that I will not at any time, both during and after my employment in a Startappss Systems, communicate or disclose confidential information to any person, corporation, or entity. I further recognize and agree that while in a Startappss Systems, I may become aware of nonpublic information of a personal nature about employees or associates, including, without limitation, actions, omissions, statements, or personally identifiable medical, family, financial, social, behavioral, or other personal or private information. I will not disclose any such information that I learn/ get to know to any other person or entity, unless required by applicable law or legal process.**

#### **EMPLOYEE**

Ishan Srivastava

By: \_\_\_\_\_

#### **COMPANY**

**Startappss Systems Private Limited**



By: \_\_\_\_\_

Name: **Nihal Jaiswal**

Title: Director | CEO

### **Employee Non-Disclosure and Confidentiality Agreement**

This Employee Non-Disclosure and Confidentiality Agreement (this "Agreement") is entered into as of the 15<sup>th</sup> July 2025 (the "Effective Date") by and between **Startappss Systems Private Limited** (the "Company"), and **Mr. Ishan Shrivastava** an employee of the Company (the "Employee"). The above parties may be referred to singularly as a "Party" or collectively as the "Parties".

The Company hired Employee as **Ishan Shrivastava** pursuant to the terms and conditions of that certain Employment Agreement executed between the Parties on the July 15<sup>th</sup> 2025 (the "Employment Agreement"). In connection with the Employee's duties under the Employment Agreement, the Company may disclose to the Employee certain confidential and proprietary information unique and valuable to its ongoing business operations. In consideration of the Employee's employment by the Company and the covenants and mutual promises contained herein, the Parties agree as follows:

**1. Confidential Information.** The term "Confidential Information" as used in this Agreement shall mean any data, information, or knowledge disclosed by the Company to the Employee and not generally known to the public, including but not limited to:

- a. The Company's business or operational plans or activities, existing or contemplated markets, advertising initiatives, methods of operation, products, or services;
- b. The Company's suppliers or logistics data;
- c. The Company's customer or supplier lists, cost of goods or services, profits and losses, budgeting, past or future sales, or financial information;
- d. The Company's schematics, designs, software source or object code, compressed or uncompressed binaries, inventions, patents or patent applications or illustrations;
- e. The Company's existing or contemplated designs, models or platforms, formulas, research, notes, or analytical data;
- f. The Company's management, board of directors, affiliates, suppliers, customers, employees, or third-party contractors;
- g. The Company's history, entity structure, accounts, or goodwill; the Company's copyrights, trademarks, trade secrets, patents, trade names, moral rights, or any other tangible or intangible rights, whether registered or unregistered;
- h. The Company's technical systems, processes, methods, algorithms, computational schemas, know-how, or trade secrets;
- i. The Company's employees, salaries, job related functions, duties or responsibilities; the Company's written, auditory or electronic communications;
- j. Any information that if disclosed, whether true or untrue, could harm the goodwill or reputation of the Company or the Company's management, board of directors, affiliates, suppliers, customers, employees, third-party contractors, methods of operation, products, or services; or
- k. Any other information of any of whatever kind and nature that the Company desires to maintain confidential.

**2. Exclusions to Confidential Information.** The obligation of confidentiality with respect to Confidential Information will not apply to any information:

3. If the information is or becomes publicly known and available other than as a result of prior unauthorized disclosure by the Employee;

- a. If the information is or was received by the Employee from a third-party source which, to the best knowledge of the Employee, is or was not under a confidentiality obligation to the Company with regard to such information;
  - b. If the information is disclosed by the Employee with the Company's prior written permission and approval;
  - c. If the information is independently developed by the Employee prior to disclosure by the Company and without the use and benefit of any of the Company's Confidential Information; or
  - d. If the Employee is legally compelled by applicable law, by any court, governmental agency, or regulatory authority or subpoena or discovery request in pending litigation, but only if, to the extent lawful, the Employee gives prompt written notice of that fact to the Company prior to disclosure so that the Company may request a protective order or other remedy, the Employee may disclose only such portion of the Confidential Information which it is legally obligated to disclose.
4. **Obligation to Maintain Confidentiality.** With respect to Confidential Information:
- a. The Employee agrees to retain the Confidential Information in strict confidence, to protect the security, integrity, and confidentiality of such information and to not permit unauthorized access to or unauthorized use, disclosure, publication, or dissemination of Confidential Information except in conformity with this Agreement.
  - b. Confidential Information is and will remain the sole and exclusive property of the Company and will not be disclosed or revealed by the Employee, except (i) to other employees of the Company who have a need to know such information and agree to be bound by the terms of this Agreement or  
(ii) with the Company's express prior written consent.
  - c. The Employee agrees that, in the event the Employee must download, access, process, transfer or otherwise communicate Confidential Information, the Employee will comply with all laws and regulations applicable to exports and re-exports of data and information and will not, directly or indirectly, export or re-export any Confidential Information in violation of such laws and regulations, including without limitation, those prohibiting export or re-export to restricted countries or without governmental authorization.
  - d. Upon termination of this Agreement or at the request of the Company, the Employee will ensure that all Confidential Information and all documents, memoranda, notes and other writings or electronic records prepared by the Employee that include or reflect any Confidential Information in the Employee's actual or constructive possession are returned to the Company within 24 Hours.
  - e. The obligation not to disclose Confidential Information shall survive th termination

of this Agreement, and at no time will the Employee be permitted to disclose Confidential Information, except to the extent that such Confidential Information is excluded from the obligations of confidentiality under this Agreement pursuant to Paragraph 2 above. The obligation not to disclose Confidential Information shall remain in effect until two years following the Employee's termination

of employment by the Company, except to the extent that such Confidential Information is excluded from the obligations of confidentiality under this Agreement pursuant to Paragraph 2 above.

**5. Disclaimer.** There is no representation or warranty, express or implied, made by the Company as to the accuracy or completeness of any of its Confidential Information.

**Remedies.** The Employee acknowledges that use or disclosure of any confidential and proprietary information in a manner inconsistent with this Agreement will give rise to irreparable injury for which damages would not be an adequate remedy. Accordingly, in addition to any other legal remedies which may be available at law or in equity, the Company shall be entitled to equitable or injustice relief against

the unauthorized use or disclosure of confidential and proprietary information. The Company shall be entitled to pursue any other legally permissible remedy available as a result of such breach, including but not limited to damages, both direct and consequential. In any action brought by the Company under this Section, the Company shall be entitled to recover its attorney's fees and costs from Employee.

**6. Notices.** All notices given under this Agreement must be in writing. A notice is effective upon receipt and shall be sent via one of the following methods: delivery in person, overnight courier service, certified or registered mail, postage prepaid, return receipt requested, addressed to the Party to be notified at the below address or by facsimile at the below facsimile number or in the case of either Party, to such other party, address or facsimile number as such Party may designate upon reasonable notice to the other Party.

#### **Startappss Systems Private Limited**

**Nihal Jaiswal | Director**

**Phone No.: +91 91791 24446**

**RegisterOffice: 93 Heera Bagh, Opp Skye Corporate, AB Road, Indore 452010**

**Phone No.: +91**

 **+91 923-892-0590**

 **www.startappss.com**

7. **Termination.** This Agreement will terminate on the earlier of: (a) the written agreement of the Parties to terminate this Agreement; (b) the cessation of the Employee's employment; or (c) one year from the date hereof.

8. **Amendment.** This Agreement may be amended or modified only by a written agreement signed by both of the Parties.

9. **Jurisdiction.** This Agreement will be governed by and construed in accordance with the laws of the State of Madhya Pradesh, without regard to the principles of conflict of laws. Any dispute arising from this Agreement shall be resolved in the courts of the State of Madhya Pradesh.

10. **No Offer or Sale.** Nothing in this Agreement will be deemed a sale or offer for sale of Confidential Information nor obligate the Company to grant the Employee a license or any rights, by statute, common law theory of estoppel or otherwise, to Confidential Information.

11. **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties and supersedes all prior or contemporaneous negotiations, discussions or agreements, whether written or oral, regarding the subject matter hereof.

12. **Miscellaneous.** No joint venture, partnership or agency relationship exists between the Employee, the Company or any third-party as a result of this Agreement. This Agreement will inure to the benefit of and be binding on the respective successors and permitted assigns of the parties. Neither Party may assign its rights or delegate its duties under this Agreement without the other Party's prior written consent. In the event that any provision of this Agreement is held to be invalid, illegal or unenforceable in whole or in part, the remaining provisions shall not be affected and shall continue to be valid, legal and enforceable as though the invalid, illegal or unenforceable parts had not been included in this Agreement. Neither Party will be charged with any waiver of any provision of this Agreement,

unless such waiver is evidenced by a writing signed by the Party and any such waiver will be limited to the terms of such writing.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the date first written above.

**EMPLOYEE**

Ishan Srivastava

By: \_\_\_\_\_

**COMPANY**

**Startappss Systems Private Limited**



By: \_\_\_\_\_

Name: Nihal Jaiswal

Title: Director | CEO